



CHAPTER xxvi

An Act to confer upon the incumbent of the united benefice of Saint Edmund the King and Saint Nicholas Acons with All Hallows Lombard Street Saint Benet Gracechurch Saint Leonard Eastcheap and Saint Dionis Backchurch in the city of London the Union-Castle Mail Steamship Company Limited and other persons powers with reference to part of the churchyard appurtenant to the former church of Saint Benet Gracechurch to provide for the extinguishment of rights over or in respect of the said part to empower the said incumbent to sell the lands comprising such part to authorise the erection of buildings on the said lands and for other purposes. [1st August 1951.]

WHEREAS by virtue of an Order in Council of Her late Majesty Queen Victoria dated the fourth day of November one thousand eight hundred and sixty-four the former church of Saint Benet Gracechurch (hereinafter in this Act referred to as "the church") which was situated at the junction of Gracechurch Street and Fenchurch Street in the city of London (hereinafter referred to as "the city") was demolished in or about the year one thousand eight hundred and sixty-seven:

And whereas by a conveyance dated the fifth day of August one thousand eight hundred and sixty-nine made between the Church Commissioners for England (hereinafter referred to as "the commissioners") under their former title of the Ecclesiastical Commissioners for England of the one part John MacNab of the second part and William Gribble of the third part the greater part of the site of the church was conveyed to the said John MacNab and following the said conveyance a building

now in the ownership of the Union-Castle Mail Steamship Company Limited (hereinafter in this Act referred to as "the company") and known as numbers 64A and 65A Gracechurch Street numbers 1A and 1B Fenchurch Street and St. Benet Chambers was erected thereon:

And whereas there was appurtenant to the church to the south and south-east thereof a churchyard which is believed formerly to have been used for the interment of human remains but which has not been so used since the year one thousand eight hundred and fifty-three when it was closed for burials by an Order in Council of Her late Majesty Queen Victoria dated the fifteenth day of August one thousand eight hundred and fifty-three:

And whereas by virtue of a scheme dated the seventh day of November one thousand nine hundred and thirty-five prepared by the commissioners under the Union of Benefices Acts 1860 and 1898 and ratified by an Order in Council dated the twenty-third day of April one thousand nine hundred and thirty-seven (hereinafter in this Act referred to as "the scheme") the benefice of Saint Benet Gracechurch was united with certain other benefices in the city to form one benefice (hereinafter in this Act referred to as "the united benefice") and such union took effect as from the eighteenth day of May one thousand nine hundred and thirty-seven:

And whereas by virtue of the said scheme the soil and freehold of the portion of the said churchyard (including that now known as Grace Court) described in the schedule to this Act (hereinafter in this Act referred to as "the scheduled land") are vested in the incumbent of the united benefice (hereinafter in this Act referred to as "the incumbent"):

And whereas the scheduled land is surrounded by property owned by the company and cannot be used or developed otherwise than in conjunction with that property:

And whereas a conditional contract has been entered into by the present incumbent of the one part and the company of the other part dated the thirteenth day of October one thousand nine hundred and fifty whereby the present incumbent has agreed to sell and the company have agreed to purchase the scheduled land:

And whereas it is expedient that the said sale should take place and that the company should be enabled to develop the scheduled land in conjunction with their surrounding property:

And whereas it is expedient that such provisions as are contained in this Act with respect to the closing sale and development of the scheduled land and the extinguishment of all rights over or in respect thereof and the removal therefrom of any human remains interred therein should be enacted:

And whereas it is expedient that the several provisions contained in this Act should be enacted:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

And whereas a plan showing the lands over or in respect of which rights may be extinguished under the powers of this Act and which may be dealt with as provided by this Act and a book of reference to such plan containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of such lands and describing the same have been deposited with the clerk of the county council of the administrative county of London.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Saint Benet Gracechurch Short title. Act 1951.

2. The Lands Clauses Acts (so far as they are applicable for the purposes of and are not varied by or inconsistent with this Act) are hereby incorporated with this Act except—

Incorporation
of provisions
of Lands
Clauses Acts.
8 & 9 Vict.
c. 18.

(a) the provisions of the Lands Clauses Consolidation Act 1845 with respect to the purchase and taking of lands otherwise than by agreement ;

(b) the provisions of the said Act of 1845 with respect to the entry of lands by the promoters ; and

(c) sections 127 to 133 (both sections inclusive) of the said Act of 1845 :

Provided that in and for the purposes of this Act the expression " the promoters of the undertaking " used in the Lands Clauses Acts shall mean the company.

3. In this Act unless the subject or context otherwise requires—

Interpretation.

" the church " means the church of Saint Benet Gracechurch which was formerly situated at the junction of Gracechurch Street and Fenchurch Street in the city ;

" the city " means the city of London ;

" the commissioners " means the Church Commissioners for England ;

" the company " means the Union-Castle Mail Steamship Company Limited and includes their successors in title being the owners of the premises known as numbers 61 62 63 64 64A and 65A Gracechurch Street St. Benet Chambers and numbers 1A 1B 1 2 3 and 4 Fenchurch Street and persons claiming through or under them ;

“ the conditional contract ” means the conditional contract between the present incumbent of the one part and the company of the other part dated the thirteenth day of October one thousand nine hundred and fifty for the sale of the scheduled land by the incumbent to the company ;

“ the corporation ” means the mayor aldermen and commons of the city acting by the mayor aldermen and commonalty of the city in common council assembled ;

“ the date of completion ” means the date on which the purchase by the company pursuant to section 4 (Purchase of scheduled land) of this Act of the scheduled land is completed ;

10 & 11 Geo. 6.
c. 51.

“ enactment ” has the same meaning as in the Town and Country Planning Act 1947 ;

“ the incumbent ” means the rector for the time being of the united benefice or during any period in which the united benefice is vacant the Lord Bishop of the Diocese of London for the time being ;

“ the scheduled land ” means the land described in the schedule to this Act ;

“ the scheme ” means the scheme for establishing the united benefice prepared by the commissioners under the Union of Benefices Acts 1860 and 1898 and ratified by an Order in Council dated the twenty-third day of April one thousand nine hundred and thirty-seven ;

“ the united benefice ” means the united benefice of Saint Edmund the King and Saint Nicholas Acons with All Hallows Lombard Street Saint Benet Gracechurch Saint Leonard Eastcheap and Saint Dionis Backchurch in the city established by the scheme.

Purchase of
scheduled land.

4.—(1) The incumbent may carry into effect the conditional contract or may enter into and carry into effect other agreements with the company for and with respect to the sale by the incumbent and the purchase by the company of the scheduled land for such price or consideration and upon and subject to such terms and provisions as may be agreed upon between the incumbent and the company.

(2) The proceeds of any sale effected under the powers conferred by this section shall be paid to the commissioners who after deducting the amount of any costs charges and expenses incurred by the incumbent under section 10 (Costs of Act) of this Act which are not repaid to him by the company shall hold the same as part of the endowments of the united benefice and the annual income received therefrom shall notwithstanding anything in Part III of the scheme be retained by the Reverend

Canon Tissington Tatlow if at the date of the passing of this Act he is the incumbent and so long as he holds the office of incumbent.

5. As from the date of completion—

(a) all private rights over the scheduled land shall be extinguished:

Extinguishment
of rights
affecting
scheduled
land.

Provided that the Company shall make full compensation to all parties interested in respect of any private rights (not being rights in respect of graves therein) extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of land otherwise than by agreement;

(b) the scheduled land shall in the hands of the company be freed and discharged from all trusts uses obligations disabilities and restrictions whatsoever which immediately before the date of completion attached thereto under ecclesiastical law or otherwise and from all rights and interests of the owners of any graves therein and from all other trusts uses obligations disabilities and restrictions whatsoever which attached thereto immediately before the said date by reason of the scheduled land or any part thereof being a disused burial ground or of forming part of the churchyard or enclosures of the church or otherwise.

6. Notwithstanding anything contained in any enactment but subject to the provisions of this Act at any time after the date of completion it shall be lawful to use deal with or dispose of the scheduled land for building or for any other purpose in like manner as if no part thereof had ever been used or set apart for the purpose of burial of human remains or had ever been or formed part of the churchyard or enclosures of the church.

Power to use
scheduled land
for building
or other
purposes.

7.—(1) Before erecting or causing to be erected any building on the scheduled land the company shall remove or cause to be removed therefrom the remains of all deceased persons interred therein.

Removal
of human
remains from
scheduled land.

(2) Before proceeding to remove any such remains the company shall publish a notice for three successive days in two newspapers circulating in the city to the effect that it is intended to remove such remains and such notice shall have embodied in it the substance of subsections (3) (4) (5) (6) and (7) of this section.

(3) At any time within two months after the first publication of such notice any person who is an heir executor administrator or relative of any deceased person whose remains are interred

in the scheduled land or part thereof may give notice in writing to the company of his intention to undertake the removal of such remains and thereupon he shall be at liberty without any faculty for the purpose but subject as hereinafter mentioned to any regulations made by the Lord Bishop of the Diocese of London (hereinafter in this section referred to as "the bishop") to cause such remains to be removed to and re-interred in any consecrated burial ground or cemetery in which burials may legally take place but in the case of a churchyard only with the consent of the incumbent of the parish.

(4) If any person giving such notice as aforesaid shall fail to satisfy the company that he is such heir executor administrator or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the Registrar of the Consistory Court of the Diocese of London who shall have power to make an order specifying who shall remove the remains and as to the payment of the costs of the application.

(5) The expense of such removal and re-interment (not exceeding in respect of remains removed from any one grave the sum of twenty-five pounds) shall be defrayed by the company such sum to be apportioned if necessary equally according to the number of remains in the grave.

(6) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the company in respect of the remains in any grave or if after such notice has been given the persons giving the same shall fail to comply with the provisions of this section and with any regulation of the bishop the company may without any faculty for that purpose remove the remains of the deceased person and cause them to be interred in such other consecrated burial ground or cemetery in which burials may legally take place as subject to the consent of the bishop the company think suitable for the purpose but in the case of interment in a churchyard the previous consent of the incumbent of the parish shall also be required.

(7) All monuments and tombstones relating to the remains of any deceased person removed under this section shall at the expense of the company be removed and re-erected at the place of re-interment of such remains or at such place as the bishop may direct on the application (if any) of such heir executor administrator or relative as aforesaid or failing such application on the application of the company and the company shall cause to be made a record of such monuments and tombstones and of their situation when re-erected showing the particulars respecting each monument and tombstone as a separate entry and such record shall be deposited at the General Register Office Somerset House London with the miscellaneous records in the custody of the Registrar-General.

(8) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health in the city.

8. All objects of geological or antiquarian interest discovered on or under the scheduled land during the execution of any works therein by the company shall subject to the rights of the Crown and except so far as they may be the property of any other person be carefully preserved and removed and shall be deposited in the Guildhall Museum as the property of the corporation and the corporation shall during the execution of any such works have power to enter and inspect such works for the purposes of this section. Deposit of objects of interest.

9. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 (Development Orders) and subsection (1) of section 118 (Application to land regulated by special enactments) of that Act. Saving for town and country planning.

10. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the incumbent who may apply for that purpose the proceeds of any sale effected by him under the provisions of this Act: Costs of Act.

Provided that nothing in this section shall prejudice or affect any liability of the company under the conditional contract or under any other contract or agreement to repay to the incumbent any of such costs charges and expenses.

SCHEDULE

DESCRIPTION OF LAND TO BE SOLD TO THE COMPANY

Land in the city believed formerly to have been used for the burial of human remains and comprising—

- (a) a piece of land containing seven hundred and eighty-two square feet or thereabouts bounded on or towards the north by the premises known as numbers 1 and 2 Fenchurch Street on or towards the east and south by premises known as numbers 3 and 4 Fenchurch Street and on or towards the west partly by premises known as numbers 61 and 62 and 63 and 64 Gracechurch Street and partly by a passageway leading from Fenchurch Street to the said piece of land and to the piece of land known as Grace Court and described in paragraph (b) of this schedule ;
- (b) a piece of land containing two hundred and seventy-five square feet or thereabouts known as Grace Court and bounded on or towards the north by the premises known as numbers 1A and 1B Fenchurch Street and St. Benet Chambers on or towards the east by the passageway referred to in paragraph (a) of this schedule and on or towards the south and west by the property known as numbers 63 and 64 Gracechurch Street.

PRINTED BY HENRY GEORGE GORDON WELCH, C.B.E.

Controller of His Majesty's Stationery Office and King's Printer of Acts of Parliament

LONDON: PUBLISHED BY HIS MAJESTY'S STATIONERY OFFICE

Price 9d. net

(76397)

PRINTED IN GREAT BRITAIN

Saint Benet Gracechurch Act, 1951

14 & 15 GEO. 6 Ch. xxvi

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5. Extinguishment of rights affecting scheduled land.
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7. Removal of human remains from scheduled land.
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9. Saving for town and country planning.
10. Costs of Act.

Schedule—Description of land to be sold to the company.